

Maa Kaila Foundries Pvt. Ltd. v. Dakhsinanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 14 January 2016 · WRIT - C No. 1104 of 2016 · WRIT - C No. 1104 of 2016 · **Writ dismissed; petitioner relegated to clause 6.14 instalment application.**

HEADNOTE

A writ seeking to quash recovery of electricity dues for failure to deposit within time will not be entertained where the consumer can apply for instalments under clause 6.14 of the Electricity Supply Code, 2005. That clause permits the licensee to extend instalments to consumers in financial distress, without waiver of surcharge. Any such application is to be decided expeditiously.

FACTUAL SUMMARY

Maa Kaila Foundries Pvt. Ltd. filed a writ petition in the Allahabad High Court seeking to quash recovery proceedings started by Dakhsinanchal Vidyut Vitran Nigam Ltd. because the company had not deposited electricity dues within the stipulated time. At the hearing, counsel for the petitioner said the company was ready to pay in instalments. Counsel for the distribution company replied that the petitioner could seek the instalment facility under clause 6.14 of the Electricity Supply Code, 2005, which is available to consumers in financial distress, though surcharge cannot be waived.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for electricity dues

HOLDING

A writ to quash recovery initiated for failure to deposit electricity dues within time will not be entertained where the consumer can take recourse to clause 6.14, which allows the licensee to extend instalments to consumers in financial distress without waiver of surcharge. If an application for that facility is filed, the licensee shall pass an appropriate order expeditiously. ¶ 1